

of each year need not be confined to the interest of that year, but the trustee will be allowed in his accounts to set off the gross amount of the maintenance against the gross amount of the interest (*d*).

[**Recent Act.** — Now by the 43d sect. of the Conveyancing and Law of Property Act, 1881, trustees under instruments coming into operation either before or after the commencement of the Act, holding property for an infant, either for life or for any greater interest, and whether absolutely, or contingently on his attaining twenty-one, or on the occurrence of any event before his attaining that age, are expressly authorised to apply the income of that property, or any part thereof, for or towards the maintenance, education, or benefit of the infant, or to pay it to the infant's parent or guardian for that purpose, and this whether there be any other fund applicable to the same purpose, or any person bound by law to provide for the infant's maintenance or education or not; and the trustees are to accumulate the residue of the income in the way of compound interest for the benefit of the person who ultimately becomes entitled to the property from which the accumulations arise, with power at any time to apply such accumulations as income of the current year (*e*).

Under this section the trustees have a discretionary power to apply past accumulations of income in payment of past maintenance (*f*).

25. This section applies only if and so far as a contrary intention is not expressed in the instrument under which the interest of the infant arises, and is to have effect subject to the terms of the instrument, but a direction to trustees to accumulate the income of the shares of children who are entitled contingently on their attaining twenty-one, [*583] or being daughters attaining that age or * marrying, and to pay the same to them as and when their presumptive shares become payable is not the expression of such a contrary intention (*a*).

(*d*) *Carmichael v. Wilson*, 3 Moll. 79; *Edwards v. Grove*, 2 De G. F. & J. 210. [(*f*) *Re Pitts' Settlement*, W. N. 1884, p. 225.]

[(*a*) *Re Thatcher's Trusts*, 26 Ch. D. 426.]

[(*e*) 44 & 45 Vict. c. 41, s. 43.]